

OFFICE OF THE SECRETARY

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July 9, 2019

The Honorable Stephen P. Gildner
Judge of the Superior Court
County of Kern
1415 Truxtun Avenue
Bakersfield, CA 93301

Re: Jimmy Lee Gaffaney
CDCR No: P41264
Case No: SC076281
Date of Sentence: May 7, 1999

Dear Honorable Stephen P. Gildner:

The purpose of this letter is to provide the court with the authority to resentence inmate Jimmy L. Gaffaney, CDCR Number, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

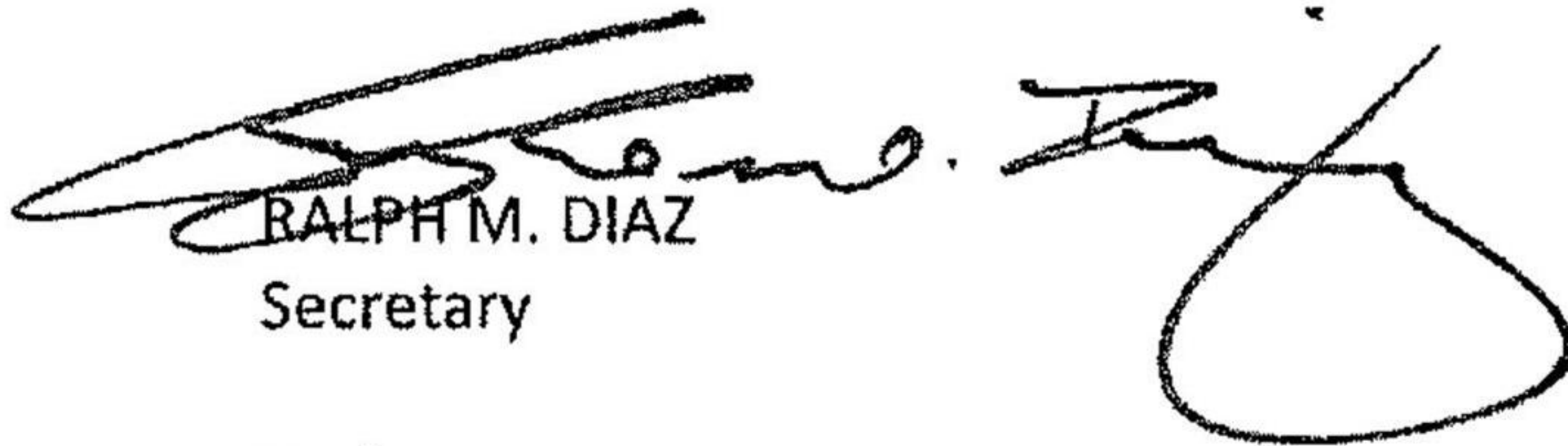
Inmate Gaffaney has not received a Serious Rules Violation Report (RVR) since August 14, 2006 when he received an RVR for Fighting. Gaffaney has also has received 17 Counseling Chronos during his incarceration with the most recent dated January 12, 2016 for Attempt to Manipulate Staff. Nevertheless, inmate Gaffaney has earned 18 Laudatory General Chrono's from various self-help groups. The most recent chrono was dated April 19, 2019, "Men Built for Other's" scholarship drive. Therefore, it appears inmate Gaffaney has modified his behavior over the past three years.

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Having reviewed the enclosed documentation it appears that inmate Gaffney's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Kern County District Attorney's Office
Kern County Public Defender's Office